

**NEW YORK STATE SUPREME COURT
KINGS COUNTY**

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WILLIE RICHARDSON,

SUMMONS

Plaintiff,

Index #

-against-

CITY OF NEW YORK and NEW YORK CITY
POLICE DETECTIVE RICARDO, DETECTIVE
JOSEPH and POLICE OFFICER JOHN DOE 1,

Defendants.

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is that where the cause of action arose, Brooklyn, New York.

Dated: Bronx, New York
February 19, 2016

PAULOSE PLLC
5676 Riverdale Avenue, Suite 314
Bronx, NY 10471
347 275 4883

By:


JUSTINE R. GRAY, ESQ.

**NEW YORK STATE SUPREME COURT
KINGS COUNTY**

-----X

WILLIE RICHARDSON,

COMPLAINT

Plaintiff,

Index #

-against-

**CITY OF NEW YORK and NEW YORK CITY
POLICE DETECTIVE RICARDO, DETECTIVE
JOSEPH and POLICE OFFICER JOHN DOE 1,**

Defendants.

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INTRODUCTORY STATEMENT

1. This is a civil rights action brought by plaintiff WILLIE RICHARDSON under the laws of the State of New York and pursuant to the Fourth and Fourteenth Amendments to the United States Constitution, 42 USC §§ 1983 and 1988. Plaintiff was falsely arrested on his way home from work and held overnight before being released on his own recognizance. Plaintiff now seeks redress against the defendants for the unnecessary and unreasonable loss of his liberty and related damages.

PARTIES

2. Plaintiff WILLIE RICHARDSON is a fifty-three year old African American man who resided in Brooklyn, New York at the time of the incident. Plaintiff currently resides in Bronx, New York.

3. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. Defendant CITY OF NEW YORK maintains the New York City Police Department (hereinafter referred to as "NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable section of the aforementioned municipal corporation, CITY OF NEW YORK.

5. That at all times hereinafter mentioned, the individually named defendants POLICE DETECTIVE RICARDO, POLICE DETECTIVE JOSEPH, and POLICE OFFICERS JOHN DOE 1, were duly sworn employees of said department and were acting under the supervision of said department and according to their official duties.

6. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

STATEMENT OF FACTS

8. On or about January 8, 2015, plaintiff had stopped to talk with a friend on his way home from work when he was falsely arrested.

9. At approximately 6:30 p.m. plaintiff was walking on Lenox Road, between East 96th Street and East 97th Street, when he stopped to speak with a female friend.

10. Plaintiff was speaking with his friend for less than two minutes when a NYPD patrol car pulled up and three defendant police officers exited the vehicle, detained and arrested plaintiff. There was no basis for the arrest.

11. A thorough physical search of the plaintiff at the 67th Precinct did not recover any illegal substances. The defendant police officers had no basis for arresting and detaining plaintiff.

12. Despite the fact that no illegal substances were found on claimant's person he was held overnight and charged with criminal possession of a controlled substance; a completely manufactured charge. On or about January 9, 2015, plaintiff was released on his own recognizance.

13. Due to his overnight confinement at the 67th Precinct, plaintiff was fired from his job.

FIRST CLAIM

42 USC § 1983/FOURTEENTH & FOURTH AMENDMENTS

UNLAWFUL IMPRISONMENT

14. Plaintiff repeats, reiterates and realleges each and every allegation contained above with the same force and effect as if fully set forth herein.

15. By reason of the foregoing, and by unlawfully detaining plaintiff against his will, and by failing to intervene and prevent such unlawful detainment, the defendants deprived plaintiff of his rights, remedies, privileges, and immunities guaranteed to every citizen, secured by 42 USC § 1983, including, but not limited to, rights guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution to be free from false arrest and unlawful imprisonment.

16. Defendants acted under the pretense and color of state law and in their individual and official capacities and within the scope of their employment as police officers and employees. The defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his constitutional rights secured by 42 USC § 1982.

17. As a direct and proximate result of defendants' actions, plaintiff sustained damages in excess of the jurisdiction of all lower courts.

SECOND CLAIM

FALSE ARREST UNDER THE LAWS OF THE STATE OF NEW YORK

18. Plaintiff repeats, reiterates and realleges each and every allegation contained above with the same force and effect as if fully set forth herein.

19. On or about February 7, 2015, plaintiff duly served upon, presented to and filed with the City of New York, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

20. More than thirty (30) days have elapsed since the filing of the aforesaid Notice of Claim, as required under General Municipal Law 50-i(1)(b).

21. The action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued as required under General Municipal Law 50-i(1)(c).

22. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

23. Defendant POLICE DETECTIVE RICARDO, POLICE DETECTIVE JOSEPH, and POLICE OFFICERS JOHN DOE 1 arrested plaintiff, or failed to intervene and prevent such unlawful arrest, without probable cause.

24. Plaintiff was detained against his will for an extended period of time.

25. As a result of the aforementioned conduct, plaintiff was unlawfully imprisoned in violation of the laws of the State of New York.

26. Defendant CITY OF NEW YORK is liable to the plaintiff for this false arrest under the theories of Respondeat Superior.

27. As a direct and proximate result of the defendants' actions, plaintiff sustained damages.

THIRD CLAIM

ASSAULT THE LAWS OF THE STATE OF NEW YORK

28. Plaintiff repeats, reiterates and realleges each and every allegation contained above with the same force and effect as if fully set forth herein.

29. As a result of the foregoing, defendant POLICE DETECTIVE RICARDO, POLICE DETECTIVE JOSEPH, and POLICE OFFICERS JOHN DOE 1, placed plaintiff, or failed to prevent plaintiff from being placed, in apprehension of imminent harmful and offensive bodily contact.

30. Defendant CITY OF NEW YORK is liable to the plaintiff for this assault under the theories of Respondeat Superior.

31. As a direct and proximate result of the defendants' actions, plaintiff sustained damages.

FOURTH CLAIM

BATTERY UNDER THE LAWS OF THE STATE OF NEW YORK

32. Plaintiff repeats, reiterates and realleges each and every allegation contained above with the same force and effect as if fully set forth herein.

33. As a result of the foregoing, Defendant POLICE DETECTIVE RICARDO, POLICE DETECTIVE JOSEPH, and POLICE OFFICERS JOHN DOE 1, made, or failed to intervene and prevent, offensive contact with the plaintiff without privilege or consent.

34. Defendant CITY OF NEW YORK is liable to the plaintiff for this battery under the theories of Respondeat Superior.

35. As a direct and proximate result of the defendants' actions, plaintiff sustained damages.

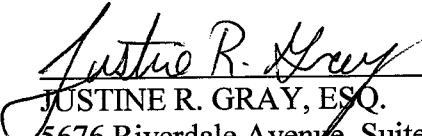
PRAYER FOR RELIEF

WHEREFORE, plaintiff requests that the Court grant the following relief jointly and severally against defendants:

1. Compensatory damages in an amount to be determined at trial;
2. Punitive damages in an amount to be determined at trial;
3. An order awarding attorneys' fees and costs; and
4. Such other or further relief as the Court may deem appropriate.

Dated: Bronx, NY
February 19, 2016

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